

Tamil Nadu Legislators (Residential Telephone Installation) Rules, 1980

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State of Tamilnadu- Act

Tamil Nadu Legislators (Residential Telephone Installation) Rules, 1980

TAMILNADU

India

Tamil Nadu Legislators (Residential Telephone Installation) Rules, 1980

Rule TAMIL-NADU-LEGISLATORS-RESIDENTIAL-TELEPHONE-INSTALLATION-RULES-1980 of 1980

Published on 28 June 1980

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Tamil Nadu Legislators (Residential Telephone Installation) Rules, 1980

Published vide Notification No. G.O. Ms. No. 1464, Public (Establishment-1), dated 28.6.1980

In exercise of the powers conferred by sub-section (1) of section 14, read with sub-section (4-C) of section 12 of the Tamil Nadu Payment of Salaries Act, 1951 (Tamil Nadu Act XX of 1951), the Governor of Tamil Nadu hereby makes the following rules: -

1.

Short title and commencement.

(1)

These rules may be called the Tamil Nadu Legislators (Residential Telephone Installation) Rules, 1980.

(2)

These rules shall be deemed to have come into force on the 29th April 1979.

2.

Definition.

- In these rules, unless the context otherwise requires, -

(i)

"Act" means the Tamil Nadu Payment of Salaries Act, 1951 (Tamil Nadu Act XX of 1951);

(ii)

"Member" means a Member of the [Legislative Assembly]

[Vide G. O. Ms. No. 486, Public (Establishment-I and Legislature), dated the 22nd April 1992.]

who does not hold any of the offices referred to in sections 3, 4, 6 and 6-A of the Act;

(iii)

"residence" means the place where a member ordinarily resides and from which he claims travelling allowance for attending meetings of the Legislative Assembly or the Committees thereof or his place of residence in the City of Chennai; and

(iv)

"Secretary" means the Secretary to the Legislative Assembly.

3.

Application for telephone.

- A Member desirous of having a telephone installed at his residence during the tenure of office as Member shall send an application in the form prescribed for the purpose by the Posts and Telegraphs Department to the District Manger, Telephones through the Secretary.

4.

[Installation and rental charges.

[Vide a G.O. Ms.No. 445, Public (Establishment-I), dated the 17th March 1983 (with effect from 1st April 1992).]

(1)

The expenses on account of installation charges for the telephone installed at the residence of a Member shall be met by the State Government.

(2)

Every member shall bear all other charges, in relation to deposit, rent, local calls, trunk calls and charges for re-connection shifting and the like.]

5.

Reimbursement.

- Every Member shall meet the expenses on account of installation charges initially and shall be entitled for reimbursement of such charges as specified in sub-rule (i) of rule 4 on the application made to the Secretary. Such application shall be accompanied by a demand notice or document evidencing installation of the telephone, together with the receipt in token of having paid the amount:

Provided that such reimbursement shall be allowed towards installation charges in the case of telephone installed on or after 29th April 1979:

Provided further that such reimbursement of the amount paid by a Member towards installation of a telephone at his residence shall be allowed only once during his term as a Member.

6.

Payment of deposit.

(1)

Every Member shall be eligible to get an interest-free advance from the State Government to meet the expenses in connection with payment towards deposit for installation of a telephone at his residence.

(2)

Every such Member shall give an undertaking that he is agreeable for the recovery of the advance from his salary or pension.

(3)

A Member, on receipt of advice from the Posts and Telegraphs Department for remittance of deposit for the provision of

a Telephone at his residence, may apply to the Secretary with the original advice received from the Posts and Telegraphs Department, for sanction of an interest free advance for the amount of deposit. On receipt of such application, the Secretary shall arrange for the payment of the deposit amount to the Member through cheque drawn in favour of the Posts and Telegraphs Department or such other authority as may be decided, from time to time.

7.

Recovery of the deposit amount.

(1)

The advance sanctioned under rule 6 shall be recovered from the salary of the Member in not more than 24 monthly instalments within the term of his office as Member. The first such recovery shall be made from the month following the month in which the cheque is given to the Member.

(2)

If, for any reason, the recovery is not effected within the term of his office as Member, the amount outstanding shall be recovered from his pension.

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